

#	Case Name	Tentative
49	Ho vs. Chiweenie Ventures, LLC 24-01381102	Motion for Leave to File Cross-Complaint Defendant J.L. Ray Company, Inc.'s ("J.L. Ray") unopposed motion for leave to file a Cross-Complaint is GRANTED. A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). (Code Civ. Proc. § 428.50, subd. (c).) If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (<i>Id.</i>) There is a liberal policy regarding the filing of cross-complaints. Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: "A party against whom a cause of action has been asserted ... may file a cross-complaint setting forth [¶] ... [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) Defendant J.L. Ray's proposed cross-complaint asserts causes of action for implied equitable indemnity, comparative contribution, declaratory relief, breach of written contract, negligence, breach of oral contract, implied contractual indemnity, and express indemnity. (Landau Decl. ¶ 13, Exh. G [Proposed Cross-Complaint].) These claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in Plaintiff's Complaint (ROA 2) and are permissive. (<i>Banerian v. O'Malley</i> (1974) 42 Cal.App.3d 604, 612 ["Except as between plaintiffs and defendants, there is no compulsory cross-complaint in California procedure."].) Defendant J.L. Ray has not unreasonably delayed in seeking leave to file its proposed cross-complaint and no prejudice to any party has been identified. Defendant J.L. Ray shall give notice and file and serve the Cross-Complaint attached as Exhibit A to the Declaration of Lauren A. Landau by June 26th, 2026.
50	Wilson vs. Toyo Suisan Kaisha, Ltd. 26-01546357	Motion to Appear Pro Hac Vice The applications of attorney Joshua R. Harris for leave to appear as counsel pro hac vice for Plaintiff Shakeceyiea Smith individually and as Guardian ad litem on behalf of Z.B., a minor is CONTINUED TO 7/10/2026 at 8:30 AM in this Department to give Mr. Harris time to comply. Moving attorney has failed to comply with Rules of Court, Rule 9.40, subd. (c)(1) and (e). The application is not supported by any proof of service evidencing the application and notice of hearing was mailed on the State Bar, required per Rules of Court, Rule 9.40(c)(1). Furthermore, there is no proof of payment to State Bar as required pursuant to Rules of Court, Rule 9.40(e). Moving attorney to give notice to all parties who have appeared in this action.

53	Phan vs. Bleu Restaurant and Dancing 24-01448536	Motion to Quash Service of Summons The Motion to Quash Service of Summons brought by Specially Appearing Defendant Kenney Nguyen is GRANTED, pursuant to Code of Civil Procedure section 418.10, subd. (a)(1). The service of the summons and complaint which was purportedly completed on December 21, 2025, as reflected in the Proof of Service filed on January 8, 2026 (ROA No. 62), is quashed. The Court notes that this order is limited to review of the above Proof of Service and does not address the newly filed Proof of Service, dated May 4, 2026 (ROA No. 75.) The Request for Judicial Notice made by Specially Appearing Defendant Kenney Nguyen (ROA No. 65) is GRANTED, pursuant to Evidence Code section 452, subdivision (d). “A defendant on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion...[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant....” (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 793.) “A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant.” (<i>Ruttenberg v. Ruttenberg</i> (1997) 53 Cal.App.4th 801, 808.) Additionally, “[w]hen a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.) A responding plaintiff is required to show “at least substantial compliance with the relevant statutory requisites for service....” (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1165.) Per the Proof of Service filed on January 8, 2026, Defendant Kenney Nguyen was personally served the summons and complaint on December 21, 2025, at 7112 Bluesails Drive in Huntington Beach, California. (ROA No. 62.) Notably, the Proof of Service was executed by a registered process server. (See ¶7(e)(3) of ROA No. 62.) “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647.) “Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.” (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) “Because of the statutory presumption, defendant was thus required to produce evidence that he was not served.” (<i>Ibid.</i>)
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